

22STLC01380 22STLC01380

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-06-30

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Case Number: 22STLC01380 Hearing Date: June 30, 2026 Dept: 26

TENTATIVE RULING:

Plaintiff Fred Loya Insurance

Company's Motion to Set Aside Dismissal and Enter Judgment is continued to 08/25/2026 at 10:00 am in Department 26 at the Spring Street Courthouse. By 07/28/2026, Plaintiff is to file proof of service of the Motion and Notice of New Hearing in accordance with the statutory requirements.

Analysis:

On March 2, 2022,

Plaintiff Fred Loya Insurance Company ("Plaintiff") filed this subrogation action against Defendant Javier Daniel Chavez ("Defendant"). Defendant answered on April 29, 2022. On November 16, 2023, Plaintiff filed a Stipulation and Order for Dismissal. The Court entered the stipulation and dismissed the action on the same date. (Stip and Order, filed 11/16/23.)

On May 13, 2026, Plaintiff filed the instant

Motion to Set Aside Dismissal and Enter Judgment. Although Defendant is represented by counsel in this action, Plaintiff improperly served the Motion directly upon Defendant by first-class mail. (Motion, p. 16.) The Stipulation for Judgment was signed by counsel for defendant, and there is no substitution or withdrawal on record. (Stip. For Judgment, 11/16/2023; Code Civ. Proc., § 285.) Under Code of Civil Procedure section 1015, "in all cases where a party has an attorney in the action or proceeding, the service of papers, when required, must be upon the attorney instead of the party" (Code Civ. Proc., § 1015.)

The hearing on the matter, therefore, is continued to ensure service upon Defendant's counsel.

Conclusion

Plaintiff Fred Loya Insurance

Company's Motion to Set Aside Dismissal and Enter Judgment is continued to 08/25/2026 at 10:00 am in Department 26 at the Spring Street Courthouse. By 07/28/2026, Plaintiff is to file proof of service of the Motion and Notice of New Hearing in accordance with the statutory requirements.

Moving party to give notice.